SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2025CUBT053766: TINA VERDUN vs SPROUTS FARMERS MARKET INC
08/26/2026 in Department 40
Motion for Protective Order

Below is the Court's tentative decision with respect to the matter on calendar. The Court may adopt, modify, or change the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

I. Background

On March 10, 2026, plaintiff Tina Verdun ("Plaintiff") filed the operative First Amended Complaint ("FAC") against SF Markers, LLC dba Sprouts Farmers Market ("Defendant") for damages and injunctive relief pursuant to the Consumer Legal Remedies Act. Plaintiff alleges she visited Defendant's Ventura store, purchased an item she believed to be on sale, and realized after the transaction that she was charged the full retail price.

Plaintiff seeks to depose a Sprouts Farmers Market store manager—Evelyn Hanna—who purports *via* LinkedIn to have some experience with pricing. Defendant does not wish to have this manager deposed because she was not in Defendant's employ when the transaction occurred, does not work at the store where the transaction occurred, and her position does not give her any knowledge about corporate pricing practices. Defendant contends that a protective order is warranted due to the minimal likelihood of Ms. Hanna having anything substantive to offer and emphasizes that Defendant has offered to schedule a PMK deposition instead. Defendant seeks monetary sanctions, alleging that Plaintiff's actions with respect to the contested deposition were taken without substantial justification and that Plaintiff is misusing the discovery process.

Plaintiff counters that since store managers "have the ability to reduce pricing of certain products for specific reasons" (Memo 4:23-25), markdowns do not necessarily implicate corporate strategies. Plaintiff further asserts that she has sufficient reasons to depose a store manager before any PMK depositions and that Plaintiff's counsel may fashion his discovery plan as he deems appropriate. Moreover, Plaintiff's counsel argues that he properly met and conferred with Defendant's counsel and that sanctions should be issued against Defendant for its failure to provide alternative dates for Ms. Hanna's deposition, its email to the court reporter attempting to cancel Ms. Hanna's deposition and its failure to appear at the deposition. (Plaintiff's separate Motion to Compel and for monetary sanctions is set for September 15, 2026.) Lastly, Plaintiff's counsel raises a serious concern about one of Defendant's attorneys practicing without a California license or other authorization under California law.

II. Analysis

A. Protective Order

The basic purpose of all discovery is to take the "game" element out of case preparation by enabling parties to obtain the evidence necessary to evaluate and resolve their dispute beforehand. (*Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1107; *Reales Investment, LLC v. Johnson* (2020) 55 Cal.App.5th 463, 473-474.) In California, discovery is purposefully broad. With certain exceptions not applicable here, each party has a presumptive right to inquire about any matter which – based on reason, logic and common sense – might (1) be admissible, (2) lead to admissible evidence, or (3) reasonably assist that party in evaluating the case, preparing for trial and/or facilitating resolution. (See CCP §2017.010; *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.) Neither relevance nor admissibility are the test. (*Maldonado v. Superior Court* (2002) 94 Cal.App.4th 1390, 1397.) In fact, to some degree fishing expeditions are permitted in discovery. (*Gonzales v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546; in accord, *Dodge, Warren & Peters Ins. Services, Inc. v. Riley* (2003) 105 Cal.App.4th 1414, 1420.)

Here, Plaintiff has noticed the deposition of Ms. Hanna, a party-affiliated individual employed as a store manager. Service of a notice of deposition is effective to require a party-affiliated witness to attend and to testify. (CCP § 2025.280.) A party may serve written objections to the deposition notice based upon an "error or irregularity" under Article 2 of the Code, but an offer of proof is not a statutory requirement. Defense counsel strongly contends that a deposition of Ms. Hanna will be a waste of time. Perhaps, but unless the witness is an apex individual (such as a public agency head, other top governmental executive or corporate president), the trial court will ordinarily not intervene to bar the deposition from happening. (See *Ross v. Superior Court* (2022) 77 Cal.App.5th 667, 679-680; *Contractors' State License Bd. v. Superior Court* (2018) 23 Cal.App.5th 125, 128; *Liberty Mutual Ins. Co. v. Superior Court* (1992) 10 Cal.App.4th 1282, 1287-1288.)

The fact that exceptional good cause must be shown to preclude an entire deposition on "fairness" grounds does not mean that the trial courts are impotent to curb potential discovery abuse. First, "the court shall limit the scope of discovery if it determines that the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence." (CCP § 2017.020(a).) Second, "the court shall restrict the frequency or extent of use of a discovery method if it determines that" the discovery sought is unreasonably cumulative or duplicative; obtainable from some other source that is more convenient, less burdensome, or less expensive; or unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation. (CCP § 2019.030(a).) Third, a trial court may issue an order protecting the deponent from "unwarranted annoyance, embarrassment, or oppression, or undue burden and expense" associated with a discovery tool. (CCP § 2025.420(b).) This list is not an exhaustive recitation of grounds for limiting discovery, simply the most common ones. (See *Nativi v. Deutsche Bank Nat'l Trust Co.* (2014) 223 Cal.App.4th 261, 316; see also, *Emerson Electric Co. v. Superior Court* (1997) 16 Cal.4th 1101, 1110.) A trial court's authority includes such remedial steps as controlling the subjects covered in deposition, the location of the deposition, the matter of inquiry (written versus oral), or whether the discovery occurs at all.

Taking into account the needs of this case, the amount in controversy, and the importance of the issues at stake, this Court shall keep tabs on the scope of discovery sought by either side. The facial amount in controversy here is $7.00 – and Plaintiff effectively admits that she paid the higher price demanded at the register without objection and without timely bringing the error to the store's attention. In fact, Plaintiff admits that the error was only discovered when she "later compared the receipt to the product and shelf display which confirmed a mismatch between the posted clearance price and the register price." (See FAC ¶ 21.) While it certainly appears that the deponent may have little, if anything, to offer in terms of relevance here (especially given that she was not employed by Defendant when the transaction occurred and works at another location), Plaintiff's counsel believes that her position as store manager gives her valuable insight into clearance pricing practices in any given store. As such, a facial reason for deposing Ms. Hanna exists. Accordingly, Plaintiff may proceed to take Ms. Hanna's deposition on the following conditions:

1. The deposition shall not exceed three hours of testimony; and
2. The deponent shall be permitted to appear for deposition *via* remote technology.

Although this Court declines to award either side monetary sanctions in light of the mixed results for both parties, this Court will reserve a prayer by defense counsel for reimbursement of counsel fees if it should come to pass that the deposition of this individual was a complete waste of time.

B. Alleged Unauthorized Practice of Law

Despite Defendant's contentions to the contrary, this Court would be remiss if it failed to address the alleged unauthorized practice of law by Defendant's counsel Ms. Restrepo.

Pursuant to Business & Professions Code sections 6125 and 6126(a) [in pertinent part]:

> No person shall practice law in California unless the person is an active licensee of the State Bar . . . any person holding herself out as entitled to practice law or otherwise practicing law who is not an active licensee of the State Bar is guilty of a misdemeanor punishable by up to one year in a county jail or by a fine of up to one thousand dollars ($1,000), or by both that fine and imprisonment.

As the term is generally understood, the "practice of the law" is the doing and performing services in a court of justice in any matter, but in a larger sense it includes legal advice and counsel and the preparation of legal instruments and contracts by which legal rights are secured although such matter may or may not be pending in a court. The character of the act, and not the place where it is performed, is the decisive element, and if the application of legal knowledge and technique is required, the activity constitutes the practice of law. Purporting to represent someone, even if only impliedly, while negotiating a settlement or related court proceedings is included within the practice of law. (See *Birbrower, Montalbano, Condon & Frank, P.C. v. Superior Court* (1998) 17 Cal.4th 119, 128-129; *Morgan v. State Bar* (1990) 51 Cal.3d 598, 604; *Altizer v. Highsmith* (2020) 52 Cal.App.5th 331, 340-341; *People v. Starski* (2017) 7 Cal.App.5th

215, 229; *Benninghoff v. Superior Court* (2006) 136 Cal.App.4th 61, 68; *Simons v. Steverson* (2001) 88 Cal.App.4th 693, 713; *Estate of Condon* (1998) 65 Cal.App.4th 1138, 1145; *People v. Landlords Professional Services* (1989) 215 Cal.App.3d 1599, 1609; in accord, *Matter of Burke* (Rev.Dept. 2016) 5 Cal. State Bar Ct.Rptr. 448, 458.)

In her declaration, Ms. Restrepo averred under penalty of perjury (excerpted for ease) as follows:

> I am a partner at Briones PC, counsel of record for Defendant SF Markets, LLC d/b/a Sprouts Farmers Market, Inc. ("Defendant" or "Sprouts") in the above-captioned matter. I have been actively involved in the representation of Sprouts in this action, including all meet and confer communications with Plaintiff's counsel. On May 1, 2026, I emailed Plaintiff's counsel, Andre L. Verdun, to request a meet and confer call to discuss the claims and case management. On July 21, 2026, I sent a written communication to Plaintiff's counsel requesting that he withdraw the Notice of Deposition and engage in a meet and confer regarding appropriate discovery witnesses and scheduling. On July 22, 2026, I sent a further written communication to Plaintiff's counsel invoking the California Attorney Guidelines of Civility and Professionalism, sections 4(h) and 6(a) and (b), and again requesting a good-faith meet and confer regarding the date and scope of the deposition. I advised Plaintiff's counsel that Defendant would be required to "bring this to the attention of the court" and "seek recovery of its incurred attorneys' fees" if Plaintiff's counsel refused to cooperate. I advised Plaintiff's counsel that if he wishes to learn details regarding Sprouts' pricing implementation, it would be more efficient to depose a Person Most Knowledgeable pursuant to Code of Civil Procedure section 2025.230 and that Defendant was prepared to cooperate in identifying the right witness(es). My billing rate is $695 per hour. To date, I have spent approximately 5.6 hours in connection with this Motion. This includes 1.5 hours researching and drafting meet-and-confer communications with Plaintiff's counsel, 0.7 hours revising Defendant's Objections to the Notice of Deposition, and 3.4 hours reviewing the instant Motion and drafting this Declaration.

The above services constitute the practice of law. Ms. Restrepo admits that she engaged in dispute resolution with opposing counsel, threatening judicial intervention by way of law and motion, satisfying the statutory meet and confer obligation for discovery motions, giving opposing counsel research and "advice," requesting reimbursement for legal fees, and holding herself out as a "partner" in the firm without clarifying the lack of a California admission. Combined, it appears to this Court that Ms. Restrepo is representing her as a California attorney. According to Plaintiff's counsel, Ms. Restrepo is not a licensed attorney in California. His Request for Judicial Notice of the California State Bar attorney search return, reflecting no admission records for an attorney with that name, is granted. The absence of records permits an inference that she is not a practicing attorney in the State of California. This Court exercised its authority under Evidence Code section 455 to take judicial notice *sua sponte* of the firm's website, which affirmatively lists Ms. Restrepo as having Bar admission in Florida and New York, but not California. It is not this Court's obligation on a discovery motion to make the definitive determination (see Bus. & Prof. Code § 6127), but it is this Court's obligation under the California Code of Judicial Ethics - Judicial Canons to "take appropriate corrective action, which may include reporting the violation to the appropriate authority." (Canon 3D(2).) Consequently, this Court sees little option but to refer Ms. Restrepo and Joshua Briones, her superior and a licensed California attorney, to the State Bar for further inquiry and investigation. This Court will, however, hear from them before making the referral. The Court acknowledges that a referral of defense counsel to the State Bar may necessitate an equitable stay per Code of Civil Procedure section 128 to permit another lawyer or firm to become involved in this case on behalf of Defendant.

III. Conclusion

Defendant's Motion for a Protective Order is GRANTED, in part only.

Defendant has demonstrated to the Court's satisfaction that an open-ended deposition of a manager in a different store is unlikely to lead to the discovery of admissible evidence relating to corporate pricing strategies. As such, the deposition may proceed but with the conditions and limits set forth above.

Plaintiff was substantially justified in the opposition she presented to the motion, thereby negating a basis for an award of prevailing party fees.

The related Motion to Compel filed by Plaintiff, and set for hearing September 15, 2026, is therefore moot and deemed vacated.